

25NWLC77075 25NWLC77075

County: los-angeles

Division: Civil Law and Motion

Department: Y

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Case Number: 25NWLC77075 Hearing Date: June 23, 2026 Dept: Y

25NWLC77075: IVER CAPITAL CORPORATION vs JONATHAN RUIZ RAMIREZ

Tentative Ruling:

The Court has read and considered the moving papers filed by Plaintiff, Iver Capital Corporation ("Plaintiff"), including counsel's declaration and the exhibits, which were inadvertently attached as Exhibit A to the proposed order. No opposition has been filed by Defendant, Jonathan Ruiz ("Defendant").

The Court finds that Plaintiff served Defendant with Form Interrogatories (Set One) and Requests for Production of Documents (Set One) by mail on March 3, 2026, and has provided proofs of service establishing proper service. Defendant has not served any responses to the discovery requests.

On May 12, 2026, Plaintiff served its Motion to Compel Responses to Discovery by mail at the same address used for the discovery requests. The proofs of service for both the discovery requests and the motion reflect the same address identified by Defendant in his Answer.

Having considered the moving papers and Defendant's failure to file an opposition or serve any responses, Plaintiff's Motion to Compel Responses to Form Interrogatories (Set One) and Requests for Production of Documents (Set One) is GRANTED. Defendant shall serve verified responses, without objection, to Plaintiff's Form Interrogatories (Set One) and Requests for Production of Documents (Set One).

The Court has also considered Plaintiff's request for monetary sanctions in the amount of \$775.00.

The Court finds the requested attorney's fees to be unreasonable and disproportionate in the context of this collection action. The Court further finds that, pursuant to Code of Civil Procedure sections 2030.290(c) and 2031.300(c), "other circumstances make the imposition of the sanction unjust."

Those circumstances include, but are not limited to, the fact that the information and documents sought by Plaintiff appear to consist largely of information already known to Plaintiff, documents already in Plaintiff's possession, and/or information or documents that are unlikely to bear on the resolution of the issues presented in this action. The Court also notes that Plaintiff does not appear to have propounded other forms of discovery, including Requests for Admission, that would more directly narrow or resolve the issues in dispute. Under these circumstances, the Court concludes that an award of monetary sanctions would be unjust. Accordingly, Plaintiff's request for monetary sanctions is DENIED.

Plaintiff shall submit a revised proposed order consistent with this ruling.

Plaintiff shall give notice.